

Filing, Notice and Court-Order Follow-up

Superior Court of California, County of San Diego; CENTRAL Division

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield; case SCD000012760

1. Supported scope. This packet is limited to the existing supported San Diego Penal Code 851.90 successful-completion cohort and confirmed dismissal facts. Verify the court record and retain actual proof of completion and dismissal. Other counties, programs, disputed completion, prosecutor opposition or a contested hearing require appropriate assistance. The court decides relief.
2. Review and sign. Check every CRM-307 fact and attached arrest entry. Select the court division that handled the case. Sign and date the petition only when its statements are true; an attorney completes attorney execution only if applicable. The optional appearance waiver is a separate choice, not a requirement or an automatic selection. Do not fill prosecutor responses, prosecutor signatures, court hearing decisions, clerk dates or distribution controls.
3. File and give notice. File the petition and its attachments with the San Diego Superior Court that handled the case. Serve a copy on the prosecuting attorney as required and retain actual proof of service. Confirm the proper prosecutor and service address/method with the receiving court or prosecutor. Notice to all parties remains required; prosecutor service alone does not establish that every applicable notice obligation is complete. Obtain any required proof-of-service form or assistance; this packet does not certify service that has not occurred.
- Fees. The San Diego Public Defender states there is no fee for this sealing petition. Confirm any separate copy or service costs. If the receiving court requests a different fee or submission, obtain clarification or assistance; no fee-waiver form is required by this packet.
4. Hearing branch. Do not assume a hearing is unnecessary. Review the prosecutor response and any court notice. If a hearing is set, comply with the actual hearing date and instructions and attend unless excused. If the prosecutor opposes or requests a hearing, obtain assistance and follow the requirement to notify the law-enforcement agencies involved in the arrest, as applicable. Keep actual notices and service records. Blank court notice fields do not mean no hearing is required.
5. Specific court requests control. If the receiving court requests a proposed order or another submission, obtain supported completion or assistance for that specific request before proceeding. This packet does not fabricate an applicant proposed order and does not override a court request.
6. Wait for the decision. Successful completion, dismissal, filing, or lack of prosecutor opposition does not establish that records are sealed. The judge decides the petition. Retain a denial or pending notice as such. After a grant, obtain and keep the actual court-issued order copy and its genuine date and case identifiers. That future order is not required to render this initial petition and is not included as a synthetic court document.
7. Follow up after grant. The court provides the order to the defendant and prosecuting attorney. Under Penal Code 851.92, within 30 days the court forwards order copies to the arresting and participating law-enforcement agencies and the master local criminal-history agency. The court sends the Department of Justice a disposition report identifying the relief statute and date, not the sealing order for criminal-history processing. If expected updates are missing, contact the court and relevant agency with the actual order and retain responses.

Filing, Notice and Court-Order Follow-up

8. Limits. Sealing does not destroy records or remove authorized criminal-justice access. Penal Code 851.90 retains a disclosure requirement for a peace-officer employment application. Obtain advice for other disclosure questions. No automatic deletion from every private database is promised.

Before filing: replace all synthetic sample facts; obtain actual completion and dismissal records; verify prosecutor service and all-party notice; address any specific court request; sign and date correctly; retain copies. After decision: retain the actual decision and, if granted, follow up on distribution and record updates.

Sources: San Diego Public Defender, Dismissal for PC1000 Participants; exact SDSC CRM-307 (new 5/19); California Penal Code 851.90 and 851.92.